

# Vendor Disclosure & Contract Checklist — South Australia

Your Form 1 obligations as a seller.

Correct as at July 2026. General information only, not legal advice. Your Form 1 should be prepared with a conveyancer or specialist provider — this checklist helps you gather what they'll need, not replace their advice.

## Section 1 — Understanding Your Form 1 Obligation

- ☐ [ ] **Know that the Form 1 (Vendor's Statement) is South Australia's key disclosure document**, typically prepared by a specialist provider engaged by your agent or conveyancer.
- ☐ [ ] **Understand the Form 1 must be complete and accurate**. It sets out important property information for the buyer and, critically, its service to the buyer is what starts their statutory cooling-off clock.
- ☐ [ ] **Know only the buyer has cooling-off rights**. As the seller, once you sign, you're bound — there's no seller cooling-off right in South Australia.

## Section 2 — Information to Gather for Your Conveyancer/Form 1 Provider

- ☐ [ ] **Title details and any encumbrances** — mortgages, easements, covenants affecting the land.
- ☐ [ ] **Zoning and planning information**.
- ☐ [ ] **Known building work history and any relevant approvals**.
- ☐ [ ] **Community title or strata records**, if applicable — recent meeting minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [ ] **Any known defects or issues** you're aware of, even if not immediately obvious.

## Section 3 — Timing Considerations Given SA's Short Cooling-Off Period

- ☐ [ ] **Get your Form 1 genuinely complete before your first open home**, not assembled hastily once an offer is on the table — since your buyer's cooling-off window is only 2 clear business days, an incomplete or delayed Form 1 creates real risk of confusion about when their rights actually start and end.
- ☐ [ ] **Coordinate with your agent on Form 1 timing for auction sales**, since the disclosure and cooling-off dynamics differ from private treaty.

## Section 4 — Price Representation

- ☐ [ ] **Discuss price guide practices with your agent** to ensure representations to prospective buyers are genuine and well-supported.
- ☐ [ ] **Don't ask your agent to advertise a misleadingly low price to generate interest**.

## Section 5 — Final Checks Before Going to Market

- ☐ [ ] **Confirm your Form 1 is complete and reviewed by your conveyancer** before your first open home.
- ☐ [ ] **Cross-check the Form 1 against your own knowledge of the property** — flag any inconsistency with your conveyancer immediately.
- ☐ [ ] **Keep a copy of everything provided to buyers**.

## Quick Reference — SA Vendor Disclosure Essentials

| Requirement                 | Key Detail                                                                        |
|-----------------------------|-----------------------------------------------------------------------------------|
| Form 1 (Vendor's Statement) | Prepared by specialist provider, typically coordinated via your agent/conveyancer |
| Seller cooling-off          | None — you're bound once you sign                                                 |
| Buyer cooling-off           | 2 clear business days from complete Form 1 service (private treaty only)          |
| Auction                     | No cooling-off period for either party                                            |

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